

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 1, 2018

Honorable Kathleen Blanchard
Judge of the Superior Court
County of Los Angeles
42011 4th Street West
Lancaster, CA 93534-7185

Re: Owens, Roderick Melvin
CDC No.: AN9784
Case No.: MA054730-01
Date of Sentence: 3/26/2013

Dear Honorable Kathleen Blanchard:

The purpose of this letter is to provide the court with authority to resentence Roderick Melvin Owens pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Owens was sentenced in 2013, and was convicted of section 245, subdivision (A)(1), Assault - likely to produce GBI. The trial court sentenced inmate Owens on 3/26/2013. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Owens's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Owens's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

A blue ink signature of Ralph M. Diaz, consisting of stylized cursive letters.

RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

AN 9184 OK TO GO STWD NOTED
April 5, 13 DC

**FELONY ABSTRACT OF JUDGMENT—DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES, NORTH DISTRICT			
PEOPLE OF THE STATE OF CALIFORNIA vs. RODERICK MELVIN OWENS DEFENDANT: AKA: GARNER, RODERICK; ET AL CII NO.: A28983221 BOOKING NO.: 2963544 ☐ NOT PRESENT		CASE NUMBER MA054730-01	
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT			
DATE OF HEARING 03-26-2013	DEPT. NO. A21	JUDGE KATHLEEN BLANCHARD	
CLERK CHRISTOPHER IRWIN	REPORTER VIRGINIA HEITZ	PROBATION NO. OR PROBATION OFFICER X-2043336 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE RACHEL R. BOWERS		COUNSEL FOR DEFENDANT NICOLE CAMPBELL, PD ☒ APPOINTED	

1. Defendant was convicted of the commission of the following felony: INTO CDBS 7M9/16				YEAR CRIME COMMITTED 2011	DATE OF CONVICTION (MO./DATE/YEAR) 03-26-13	CONVICTED BY JURY ☐ COURT ☒ PLEA ☐	TERM (L, M, U) L	TIME IMPOSED YRS. 2 MOS. 0	
COUNT 01	CODE PC	SECTION NUMBER 245(A)(1)	CRIME Assault - likely to produce GBI						

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL	
01	PC 12022.7(A)	3					3	0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL	
PC 186.22(B)(1)(C)	10					10	0

4. Defendant sentenced ☐ to prison per PC 1170(a) or (h)(3) ☐ to county jail per PC 1170(h)(1) or (2) ☐ per PC 667(b)-(i) or PC 1170.12 (strike prior) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. Defendant was ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$4,200 per PC 1202.4 (b) forthwith per PC 2085.5 if prison commitment \$200 per PC 1202.45 suspended unless parole is \$ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4 (f): ☒ \$ ☒ Amount to be determined to ☒ * victim(s) ☐ Restitution Fund

* ☐ Victim name(s), if known, and amount breakdown in item 8, below. * ☐ Victim name(s) in probation officer's report.

Fine(s): \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Security Fee of \$ 40.00 per PC 1465.8. ☒ Criminal Conviction Assessment of \$ 30.00 per GC 70373.

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☒ other (specify): 296 PC

7. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post sentence report to CDCR per PC 1203c. Deft's Race / National Origin Bla

8. Other orders (specify): Deft waives presence at restitution hearing: 4/24/13. Register as street gang participant

9. TOTAL TIME IMPOSED: 15 YRS. 0 MOS.

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: Served forthwith:

11. ☐ This sentence is to run concurrent with (specify):

12. REGISTRATION REQUIREMENT: ☒ per (specify code section): 186.22(B)(1)(C)

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PRONOUNCED 03-26-2013	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS: 556	ACTUAL LOCAL TIME 484	LOCAL CONDUCT CREDITS 072 ☐ 2933 ☐ 2933.1 ☐ 4019	TIME SERVED IN STATE INSTITUTION DMH ☐ CDCR ☐ CRC [] [] []
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15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays. To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation. ☐ county jail ☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of this action.

DEPUTY'S SIGNATURE: Patricia Smith DATE 04-02-2013

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. It may be used but must be referred to in this document.

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